

COMMISSION IMPLEMENTING DIRECTIVE 2013/63/EU

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COMMISSION IMPLEMENTING DIRECTIVE 2013/63/EU

of 17 December 2013

amending Annexes I and II to Council Directive 2002/56/EC as regards minimum conditions to be satisfied by seed potatoes and lots of seed potatoes

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Directive 2002/56/EC of 13 June 2002 on the marketing of seed potatoes (1), and in particular Article 24 thereof,

Whereas:

(1)

Since the adoption of Directive 2002/56/EC new methods of potato breeding have been developed, diagnostic tools to identify harmful organisms and agronomic practices to fight the spread of harmful organisms have been improved.

(2)

Those technical developments permit the production of seed potatoes fulfilling stricter requirements than those laid down in Annexes I and II to Directive 2002/56/EC. At the same time knowledge about new disease agents has become available and knowledge about existing diseases has evolved showing that some diseases require stricter measures.

(3)

Against this background, the standard of United Nations Economic Commission for Europe (UNECE) concerning the marketing and commercial quality control of seed potatoes has been adapted in view of those technical and scientific developments (2).

(4)

Taking into account those developments, certain minimum conditions and tolerances, as set out in Annexes I and II to Directive 2002/56/EC, should be updated and restrictions concerning black scurf, powdery scab and seed potatoes, which have become excessively dehydrated and shrivelled, should be added in Annex II.

(5)

Since the adoption of Directive 2002/56/EC, scientific knowledge has developed concerning the link between the number of generations and the level of presence of pests of seed potatoes. Limiting the number of generations is a necessary way of mitigating the phytosanitary risk posed by pests in latent form. That limitation is necessary for the mitigation of that risk, and no other less stringent measures are

available to replace it. A maximum of seven generations for pre-basic and basic seed potatoes achieves a balance between the need to multiply sufficient numbers of seed potatoes for the production of certified seed potatoes, and the protection of their health status.

(6)

The requirements concerning the harmful organism *Synchytrium endobioticum* (Schilb.) Perc. should be removed from Annex I because its presence on seed potatoes is regulated by Council Directive 69/464/EEC (3). The requirements concerning the harmful organism *Corynebacterium sepedonicum* (Spieck. et Kotth.) Skapt. and Burkh., the name of which has been replaced by *Clavibacter michiganensis* subsp. *sepedonicus* (Spieck. et Kotth.) Davis et al., should be removed from Annexes I and II because its presence on seed potatoes is regulated by Council Directive 93/85/EEC (4). The requirements concerning the harmful organism *Heterodera rostochiensis* Woll., the name of which has been replaced by *Globodera rostochiensis* (Wollenweber) Behrens should be removed from Annex II because its presence on seed potatoes is regulated by Council Directive 2007/33/EC (5). The requirements concerning the harmful organism *Pseudomonas solanacearum* (Smith) Smith, the name of which has been replaced by *Ralstonia solanacearum* (Smith) Yabuuchi et al., should be removed from Annex II because its presence on seed potatoes is regulated by Council Directive 98/57/EC (6).

(7)

Annexes I and II to Directive 2002/56/EC should therefore be amended accordingly.

(8)

The measures provided for in this Directive are in accordance with the opinion of the Standing Committee on Seeds and Propagating Material for Agriculture, Horticulture and Forestry,

HAS ADOPTED THIS DIRECTIVE:

Article 1

Amendments to Directive 2002/56/EC

Annexes I and II to Directive 2002/56/EC are amended in accordance with the Annex to this Directive.

Article 2

Transposition

Member States shall adopt and publish, by 31 December 2015 at the latest, the laws, regulations and administrative provisions necessary to comply with this Directive. They shall forthwith communicate to the Commission the text of those provisions.

They shall apply those provisions from 1 January 2016.

When Member States adopt those provisions, they shall contain a reference to this Directive or be accompanied by such a reference on the occasion of their official publication. Member States shall determine how such reference is to be made.

Article 3

Entry into force

This Directive shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

Article 4

Addressees

This Directive is addressed to the Member States.

Done at Brussels, 17 December 2013.